IN THE HIGH COURT OF ORISSA AT CUTTACK

CRLA No.461 of 2020

In the matter of an Appeal under section 374 (2) of the Code of Criminal Procedure, 1973 and from the judgment of conviction and order of sentence dated 29.01.2020 passed by the learned Sessions Judge, Gajapati, Paralakhemundi in S.T. No.24 of 2016.

Sujeet Sabar .... ***Appellant***

-versus-

State of Odisha .... ***Respondent***

Appeared in this case by Hybrid Arrangement (Virtual/Physical Mode):

For Appellant - Mr.N.R.Mohanty, (Advocate)

For Respondent - Mr.Sitikant Mishra, Addl. Standing Counsel

CORAM:

MR. JUSTICE D.DASH
DR. JUSTICE S.K.PANIGRAHI

Date of Hearing :19.05.2023 : Date of Judgment:21.06.2023

D.Dash,J. The Appellant, by filing this Appeal, has assailed the judgment of conviction and the order of sentence dated 29.01.2020 passed by the learned Sessions Judge, Gajapati, Paralakhemundi in S.T. No.24 of 2016 arising out of G.R. Case No.518 of 2015 corresponding to Serango P.S. Case No.59 of 2015 of the Court of learned Sub-Divisional Judicial Magistrate (SDJM), Paralakhemundi.

The Appellant (accused) has been convicted for commission of offence under section 452/302 of the Indian Penal Code, 1860 (in short,

'IPC') and he has been sentenced to undergo imprisonment for life for the offence under section 302 of the IPC and rigorous imprisonment for 5 years and fine of Rs.5000/- (Rupees Five Thousand) in default to suffer rigorous imprisonment for six (6) months for the offence under section 452 of the IPC with the stipulation that the substantive sentences would run concurrently.

2. Prosecution case is that on 18.11.2015 at about 8.30 a.m., the accused entered into the 3rd standard class room of Dangosingh Ashram School at village Dangosingh under Seranga Police Station in the district of Gajapati. It is stated that the accused then assaulted a girl student, who was reading in that class-III by giving kicks and fist blows. When other students of the said class raised hullah, the teachers of the school as well as the Head Mistress went to the said class room and found that girl student aged about 9 years lying in a serious condition.

The Head Mistress namely, Smt.Jamuna Devi (P.W.1) then presented the written report with the Inspector-in-Charge (IIC) of Seranga Police Station, who treating the same as First Information Report (F.I.R.), immediately registered the case and directed the Assistant Sub-Inspector of Police (ASI) attached to the said Police Station (P.W.15) to take up the investigation.

3. In course of investigation, said Investigating Officer (I.O-P.W.15) examined the informant (P.W.1) and he then received the opinion that the injured student was admitted to Gumma Community Health Centre (CHC). So he went there and issued requisition vide Ext.8 for submission of the injury report. The I.O (P.W.15) then visited the spot, prepared the spot map (Ext.9) and examined other witnesses. The accused was then arrested and forwarded in custody to Court.

On that day, in the evening around 5.45 pm, the I.O (P.W.15) received a message from Managalabag Police Station, Cuttack regarding the death of injured student in course of her treatment in the SCB Medical College and Hospital, Cuttack. The case then having turned to one under section 302 of the IPC, the IIC (P.W.18) took charge of the investigation and investigated into the case. That second I.O. then re-examined the Informant (P.W.2) and other witnesses, she obtained the inquest and Post Mortem Examination Report of the deceased from Cuttack and seized those. On completion of the investigation, that second I.O (P.W.18) submitted the Final Form placing the accused to face the Trial for commission of offence under section 452/302 of the IPC.

4. Learned SDJM, Paralakhemundi, receiving the Final Form as above, took cognizance of the offence and after observing the formalities committed the case to the Court of Sessions. That is how the Trial commenced by framing charge against the said offence against the accused.

5. In the Trial, the prosecution in total has examined twenty (20) witnesses. As already stated P.W.1, is the Head Mistress of the Ashram School, who had lodged the FIR and proved the same as Ext.1. P.W.2, P.W.3 and P.W.11 are the Teachers of the said school whereas P.W.4 is the peon attached to the school. A student of class-IX has been examined as P.W.5. The father of the deceased girl student has come to the witness box as P.W.6. The Doctor, who had conducted Post Mortem Examination over the dead body of the deceased, has been examined as P.W.14, whereas the first I.O is P.W.15. P.W.18 is the second I.O., who completed the investigation and submitted the Final Form.

6. The plea of the defence is that of complete denial and false implication. The accused has examined two witnesses i.e. D.W.1 and D.W.2. This D.W.1 is the mother of the accused whereas D.W.2 is the Medical Officer of Gumma CHC, who had initially examined the injured student being taken by the Head Mistress (Informant-P.W.1). The Trial Court having examined the evidence of P.W.14 who being the Associate Professor in the Department of F & T of SCB Medical College and Hospital at Cuttack had conducted the Post Mortem Examination over the dead body of the deceased aged around 9 years and his report (Ext.7) as well as the evidence of other witnesses including the A.S.I. of Police Officer (P.W.19), who had held inquest over the dead body of the deceased and submitted his report (Ext.11) has arrived at a conclusion that the death of the deceased was a homicidal in nature. In fact this aspect of the case was not under the challenge before the Trial Court that is also the situation before us.

The Assistant Professor (P.W.14) during post mortem examination had noticed the following external injuries.

> "a. Abrasion with red brown scab on the back of right shoulder measures 6cm x 3 cm.;
>
> b. Abraded contusion of size 6cm x 3.5 cm, reddish brown in colour was noticed on the right side of face just lateral to orbit and malar prominence.;
>
> c. Abraded contusion which was reddish brown in colour and of size 6 cm x 2 cm was noticed below that left eye.; and
>
> d. Abrasion with brownish scab and peripheral shedding was noticed on the right knee, 1 cm x 1 cm in size."

On dissection, she had found the scalp to be contused at left fronto temporal area and so also the temporalis muscles was contused by lateral. She had noticed subdural hemorrhage on right hemisphere and

diffuse sub arachnoid hemorrhage on both the hemisphere. Punctate intra cerebral hemorrhage had also been noticed by P.W.14 in the white matter of both frontal regions. The lateral ventricles were containing fluid blood. P.W.14 has deposed to have noticed a centrally placed pocket of clotted hematoma in the cerebellum with punctate brain stem hemorrhage in mid brain and pons. It is her evidence that all these injuries are ante mortem and could have been caused by hard and blunt trauma. The opinion of P.W.14 is that the death could have been due to cranio cerebral injuries and complications thereof. P.W.14 has noted all these features during all those external and internal features noticed on the dead body of the deceased girl student aged about 9 years in her report (Ext.7). In addition to the above, the witnesses have also stated that the deceased student having received the injuries caused by the accused became unconscious and there was bleeding too. It is also the evidence that the deceased after receiving the injuries in the class room was taken to nearest hospital and then ultimately had been received at S.C.B. Medical College and Hospital at Cuttack where she succumbed to the said injuries on the next day of the incident. All these evidence as discussed above have not been shaken in any manner. Therefore, we are of the view that the death of the deceased girl student of the age of 9 years was homicidal in nature.

7. Learned counsel for the Appellant (accused) submitted that the prosecution evidence placed through the witnesses P.W.1, P.W.4 and P.W.5 having not been critically analyzed the conclusion of the Trial Court that it is the accused for whose assault, the deceased met her death cannot be sustained. He further submitted that there is no acceptable direct evidence that is the accused had assaulted the deceased while she was in the class room. He submitted that when the classmates of the

deceased have not whispered anything implicating the accused and when the another classmate of the deceased (P.W.20) has expressed her ignorance as to how the deceased died with further evidence on record coming from the lips of D.W.1 that he had noticed no such external injuries on the body of the deceased, the finding of guilt against the accused as has been returned by the Trial Court is liable to be set aside.

8. Learned counsel for the State-Respondent submitted that when the consistent evidence of the prosecution witnesses stand that the accused having entered into the class room, assaulted the deceased who was a handicapped girl and in consequence thereof as the evidence reveal that the death has taken place, the Trial Court did commit no mistake in holding the accused guilty for commission of offence under section 452/302 of the IPC.

9. Keeping in view the submissions made, we have carefully read the judgment of conviction impugned in this Appeal. We have also gone through the depositions of all the witnesses P.W.1 to P.W.20 and two D.Ws (D.W.1 & D.W.2). We have also perused the documents which have been admitted in evidence and marked Ext.1 to Ext.12/1.

10. In order to address the rival submission and find out the complicity of the accused in assaulting the girl student of the age of 9 years when she was in the classroom of the school which has finally led to her death, we are called upon to undertake the exercise of scrutiny of the evidence on record.

Admittedly, P.W.1 was the Head Mistress of the school at the relevant time and then the deceased was reading in class-III of the said school. P.W.1 states that on that day hearing shout of the students, she went to the said place, she saw the accused running away from the

school premises. It is her evidence that the students then informed that the accused having come there had assaulted the deceased. She then states to have seen the deceased lying unconscious on the ground with bleeding injury on her head. It is stated by her that immediately after that the deceased was shifted to CHC, Gumma and the matter was informed to the Police Officer at Gumma Police Out Post. She, during cross-examination, has stated that at the relevant time, no teacher had been allotted to take up the period of class-III. P.W.2, the another teacher of the school has also stated that hearing the shout of the students, while going towards the room of class-III, she found the deceased lying on the ground with blood oozing out of her ear. Her evidence is that the injured student was unconscious. Although it has been stated by this witness P.W.2 that the students informed about the incident that accused assaulted the deceased, she having not been able to name those students in our considered view not that a deficiency to discard their evidence that being the teachers of the school having heard the shouts of the students had come to the room and saw the accused running away. Another teacher of the school has also stated in the same vein that when she was taking the class in class-V, having heard the shout, she had come to the place and saw the deceased lying unconscious with blood oozing out of her ear and then she was lying on the ground. She has further stated to have ascertained the fact from students that the accused came to the school and had assaulted the deceased.

The star witness for the prosecution is P.W.4 who is the peon of the school. He has stated that it was around 8.30 am, the accused entered the school premises and having gone to the room where class-III students were sitting, he assaulted the deceased by giving fist and kicks.

He has further stated that during such assault, deceased received bleeding injuries and came to lie on the ground in an unconscious state. He has specifically stated that when he rushed to the room, the accused seeing him and others ran away. He has clearly stated that by the time he arrived; other students were also present in the class room. P.W.5, who is a student of class-IX has stated to have seen the accused running away from the spot where the deceased was lying unconscious. He has denied the suggestion to have been stating falsehood. The time gap between the entry and exit of the accused as stated by this witness is too short. The accused was not unknown to these witnesses. It is no doubt true that some students who have been examined from the side of the prosecution i.e. P.W.7 as also P.W.20 have not implicated the accused but for that reason, the evidence of the prosecution witnesses as obtained and already discussed to the effect that they had seen the accused running away from the class room and then immediately they noticed the deceased lying unconscious on ground with bleeding from her ear cannot be disbelieved. The evidence of the above witnesses examined from the side of the prosecution thus reveal that the accused at the relevant time had entered into the school premises and gone to that room where deceased was very much present and shortly thereafter he when the above noted witnesses were approaching the room hearing the shout of the students, the accused was found running away and that immediately they then had seen the deceased lying unconscious on the ground with bleeding from her ear and some blood was also there on the floor are acceptable.

The accused with such proven circumstance has not provided any explanation as to why he had at all been to the school and entered into the room in question. It is rather seen that the accused when in his

statement recorded under 313 of the Cr.P.C. has not provided any such explanation, his mother has come to depose that the accused was undergoing treatment for unsoundness on his mind. She has further stated that at the time when the incident took place in the school, the accused was residing with her and was under treatment. Such evidence let in by the prosecution is totally without any corroboration and not deriving support from any documents or proved incident/s which had happened before.

11. On a conspectus of discussion of evidence as hereinabove, we are thus of the view that the finding of guilt recorded by the Trial Court against the accused for commission of the offence under section 452/302 of the IPC Act is well in order and the accused has rightly been convicted for the offence under section 452/302 of the IPC and sentenced thereunder.

12. In the result, the Appeal stands dismissed. The judgment of conviction and order of sentence dated 29.01.2020 passed by the learned Sessions Judge, Gajapati, Paralakhemundi in S.T. No.24 of 2016 are hereby confirmed.

(D. Dash),
Judge.

Dr.S.K. Panigrahi, J. I Agree.

(Dr.S.K.Panigrahi),
Judge.

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